

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gabriella Carpenter	Team: Squad #13	CCRB Case #: 201705336	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 06/14/2017 8:35 PM	Location of Incident: § 87(2)(b); en route to the 47th Precinct stationhouse	18 Mo. SOL 12/14/2018	Precinct: 47
Date/Time CV Reported Thu, 06/15/2017 6:40 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/30/2017 2:44 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Aleksandr Kovalenko	01184	944709	047 PCT
2. An officer			047 PCT
3. POM John Londono	20603	959765	047 PCT
4. Officers			047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eugene Urman	19573	959324	047 PCT
2. POM Matthew Vinzo	31313	956320	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Aleksandr Kovalenko	Abuse: Sgt. Aleksandr Kovalenko searched the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . SGT Aleksandr Kovalenko	Discourtesy: Sgt. Aleksandr Kovalenko spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM John Londono	Abuse: PO John Londono searched the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . SGT Aleksandr Kovalenko	Force: Sgt. Aleksandr Kovalenko tightly handcuffed § 87(2)(b)	D . Unsubstantiated
E . POM John Londono	Abuse: PO John Londono searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . Officers	Abuse: Officers searched the vehicle in which § 87(2)(b) was an occupant.	F . Officer(s) Unidentified
G . An officer	Abuse: An officer damaged § 87(2)(b)'s property.	G . Officer(s) Unidentified
H . An officer	Abuse: An officer deleted information on § 87(2)(b)'s electronic device	H . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the phone on June 30, 2017.

On June 14, 2017, at approximately 8:35 p.m., § 87(2)(b) was parked outside of § 87(2)(b) in the Bronx waiting to pick up his girlfriend, § 87(2)(b) when Sergeant Aleksandr Kovalenko and Police Officer John Londono of the 47th Precinct drove up next to him and Sgt. Kovalenko told § 87(2)(b) that his license plate cover was illegal. § 87(2)(b) said that he would take care of it. Sgt. Kovalenko parked in front of § 87(2)(b) and both officers approached § 87(2)(b)'s car. § 87(2)(b) gave Sgt. Kovalenko his license and documentation and the officers returned to their car. When the officers walked back to § 87(2)(b)'s car, Sgt. Kovalenko told § 87(2)(b) that his parking placard looked fake, reached through § 87(2)(b)'s window, and removed the placard (**allegation A**). § 87(2)(b) called 911 and asked for a supervisor. A few minutes later, Police Officer Eugene Urman and Police Officer Matthew Vinzo, also of the 47th Precinct, arrived and asked § 87(2)(b) what was going on. § 87(2)(b) told them that he had called for a supervisor and not additional patrol officers, so the officers walked away. Sgt. Kovalenko and PO Londono walked back to § 87(2)(b)'s car and Sgt. Kovalenko told PO Londono to arrest § 87(2)(b). § 87(2)(b) asked why he was being arrested and Sgt. Kovalenko said, "Shut the fuck up" (**allegation B**). PO Londono asked § 87(2)(b) to get out of the car and § 87(2)(b) asked him why. PO Londono reached his hand into § 87(2)(b)'s window, unlocked the door, and opened it (**allegation C**). § 87(2)(b) stepped out of the car and PO Londono handcuffed him. § 87(2)(b) asked him to loosen the handcuffs and Sgt. Kovalenko walked over to § 87(2)(b) and tightened them (**allegation D**). Sgt. Kovalenko and PO Londono drove § 87(2)(b) and PO Vinzo drove § 87(2)(b)'s car to the 47th Precinct stationhouse. During the drive, Sgt. Kovalenko told § 87(2)(b) to "Shut the fuck up" again. § 87(2)(b) was released from the stationhouse with summonses for § 87(2)(b). Further investigation revealed that his license was no longer suspended so he was not kept under arrest. When § 87(2)(b) got his car back, it appeared to have been searched and a family photo was ripped (**allegations E through G**). § 87(2)(b) tried to send the video footage from his dashboard camera to the Internal Affairs Bureau and found that the data had been deleted from it (**allegation H**).

§ 87(2)(b) took a video of the incident on her cell phone but it does not capture any allegations (BR 01 and BR 01).



Video for 201705336.MP3

Mediation, Civil and Criminal Histories

- Mediation was not offered in this case as § 87(2)(b) is planning to sue the city.
- This case was submitted pending a FOIL request sent to the comptroller's office on September 13, 2017 for any notice of claim filed in regard to the incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three previous complaints with the CCRB. § 87(2)(g)

- § 87(2)(g), § 87(2)(b)
- Sgt. Kovalenko has been a member of the service for ten years and has had fourteen other CCRB allegations pled against him in six cases, including the following: In CCRB 201609709, the Board substantiated a threat of force allegation and recommended formalized training; the NYPD disposition is still pending. § 87(2)(g)
- Two allegations of discourtesy (word) were pled against him, one in CCRB 201104551 that was closed as unsubstantiated and one in CCRB 201704463 that is still pending.
- One property damage allegation was pled against him in CCRB 201705266 that is still pending.
- PO Londono has been a member of the service for one year and has had two other CCRB allegations pled against him in one case.

Findings and Recommendations

Allegations not pleaded:

- § 87(2)(g)
-

Allegation A: Abuse of Authority: Sgt. Aleksandr Kovalenko searched the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Discourtesy: Sgt. Aleksandr Kovalenko spoke discourteously to § 87(2)(b)

Allegation C: Abuse of Authority: PO John Londono searched the vehicle in which § 87(2)(b) was an occupant.

Allegation D: Force: Sgt. Aleksandr Kovalenko tightly handcuffed § 87(2)(b)

§ 87(2)(b) testified that he was parked across the street from § 87(2)(b) in the Bronx waiting to pick up his girlfriend, § 87(2)(b) (BR 03 and BR 04). A marked police car stopped just behind his car in the middle of the street for two or three minutes and then pulled up next to his car. Sgt. Kovalenko, who was driving, told § 87(2)(b) that his license plate cover was illegal and § 87(2)(b) said that he would take care of it. Sgt. Kovalenko turned the police lights on, pulled in front of § 87(2)(b) and parked. § 87(2)(b) turned on the camera in his car and started recording. Sgt. Kovalenko and PO Londono got out of the car and approached § 87(2)(b)'s window. Sgt. Kovalenko asked § 87(2)(b) for his license, registration, and insurance card. § 87(2)(b) handed Sgt. Kovalenko the documentation and the officers walked back to their car. The officers walked back to § 87(2)(b)'s car and Sgt. Kovalenko asked him what the placard was in the window. § 87(2)(b) explained that it was a parking placard for Mount Vernon. Sgt. Kovalenko said that it looked fake, reached through § 87(2)(b)'s window, removed the placard, and took it back to his car. § 87(2)(b) called 911 to ask for a supervisor to respond. PO Urman and PO Vinzo arrived and spoke to § 87(2)(b) briefly and then walked away before Sgt. Kovalenko and PO Londono walked back to § 87(2)(b)'s car. Sgt. Kovalenko told PO Londono to arrest § 87(2)(b)

§ 87(2)(b) asked what he was being arrested for and Sgt. Kovalenko said, “Shut the fuck up.” PO Londono asked § 87(2)(b) to get out of the car and § 87(2)(b) asked why. PO Londono reached his hand into § 87(2)(b) s window, unlocked the door, and opened it. § 87(2)(b) stepped out of the car and PO Londono handcuffed him. § 87(2)(b) complained that the handcuffs were too tight and Sgt. Kovalenko walked over to him and tightened them. Sgt. Kovalenko and PO Londono drove § 87(2)(b) to the stationhouse and PO Vinzo drove § 87(2)(b) s car. While in the car, Sgt. Kovalenko told § 87(2)(b) to “Shut the fuck up” again. § 87(2)(b) was released from the stationhouse after two and a half or three hours after PO Londono gave him five summonses, one for his license plate cover and one for each of his tinted windows. A few days after the incident, § 87(2)(b) was treated at § 87(2)(b) for pain in his wrists and was diagnosed with a potential wrist sprain.

§ 87(2)(b) testified that she went outside of her apartment building to meet § 87(2)(b) and saw a marked police car parked in front of § 87(2)(b) s car (BR 05). Sgt. Kovalenko and PO Londono were standing next to § 87(2)(b) s car and § 87(2)(b) who was still seated in the driver’s seat of his car, asked the officers why he was being arrested. One of the officers § 87(2)(g)

§ 87(2)(b) told him that he was being arrested for parking close to a fire hydrant. The officers asked § 87(2)(b) to get out of the car so he stepped out and shut the door. An officer handcuffed § 87(2)(b) and took him to the police car. § 87(2)(b) could not see whether an officer touched § 87(2)(b) s handcuffs again after handcuffing him because officers were blocking her view. An officer got into § 87(2)(b) s car, touched § 87(2)(b) s camera on the windshield, and broke part of the camera off. He also opened the center console and looked through it before driving § 87(2)(b) s car away. Other officers drove § 87(2)(b) away. § 87(2)(b) did not hear any officers use profanity.

Sgt. Kovalenko testified that he observed a car with excessively tinted windows and a license plate cover parked in front of a hydrant (BR 06). The officers approached immediately because Sgt. Kovalenko intended to summons the driver for his license plate cover and tinted windows. § 87(2)(b) provided his license after the officers asked for a couple minutes. Sgt. Kovalenko asked § 87(2)(b) about the parking placard for Mount Vernon in his windshield and § 87(2)(b) removed it and handed it to the officers. The officers returned it to § 87(2)(b) then walked back to their car. Sgt. Kovalenko could not recall whether there was anything about the placard that made him think that it was fake, or whether the officers did any checks to verify its authenticity. PO Londono ran a check on § 87(2)(b) s license and found that it was suspended. Sgt. Kovalenko told PO Londono to arrest the driver. The officers returned to § 87(2)(b) s car and one of them explained why § 87(2)(b) was being arrested. Sgt. Kovalenko could not recall if one of the officers opened the driver’s door but he did not think that an officer reached into the driver’s car to unlock the door. Sgt. Kovalenko thought that PO Londono handcuffed § 87(2)(b) but he could not recall if § 87(2)(b) said that the handcuffs were too tight. Sgt. Kovalenko did not think that he or another officer tightened the handcuffs. PO Londono frisked and searched § 87(2)(b) and then put him in the officers’ car. Back-up officers arrived when § 87(2)(b) was being placed under arrest; Sgt. Kovalenko found out when they arrived that § 87(2)(b) had called 911. PO Vinzo drove § 87(2)(b) s car back to the stationhouse and PO Londono and Sgt. Kovalenko drove § 87(2)(b). Sgt. Kovalenko did not think that an officer used profanity during the incident. He did not know whether the car was searched at the stationhouse but he did not order officers to search it. During the interview, Sgt. Kovalenko looked at § 87(2)(b) s medical records showing that he was diagnosed with a sprained wrist and stated that he did not know how § 87(2)(b) could have sustained a sprained wrist from the incident.

PO Londono corroborated Sgt. Kovalenko's statement with the following distinctions: § 87(2)(b) handed the officers his parking placard because Sgt. Kovalenko and PO Londono asked to see it (BR 07). The officers then called the Mount Vernon city government but were unable to verify the authenticity of the placard. The officers kept the placard until they arrived back at the stationhouse, and then PO Londono put it back in § 87(2)(b)'s car. After searching § 87(2)(b)'s car at the stationhouse, PO Londono ran § 87(2)(b)'s license on Z-Finest and saw that it was no longer suspended. Less than two hours after arriving at the stationhouse, PO Londono released § 87(2)(b) with summonses for the tinted windows; he gave § 87(2)(b) warnings for the parking placard and for parking next to a fire hydrant.

PO Vinzo testified that he and PO Urman responded to the scene after receiving a call that an officer was harassing someone (BR 08). PO Vinzo and PO Urman approached Sgt. Kovalenko and asked if he was there as back-up for them. Sgt. Kovalenko told them that he was not there as back-up and that he and PO Londono had stopped § 87(2)(b) for excessive tints and for parking beside a hydrant. Sgt. Kovalenko also said that they were going to arrest § 87(2)(b) but did not say why. PO Vinzo and PO Urman approached § 87(2)(b) and asked if he had called 911. § 87(2)(b) said that he had and that he wanted to speak to a supervisor. The officers said that their supervisor was already on the scene and then walked away. After PO Vinzo and PO Urman had been on the scene for about five minutes, PO Londono placed § 87(2)(b) under arrest. PO Vinzo could not recall whether § 87(2)(b) opened the car door for himself or whether an officer reached into the car to unlock it. He also could not recall whether § 87(2)(b) said that his handcuffs were too tight, if he asked for them to be loosened, or whether an officer touched § 87(2)(b)'s handcuffs again after initially placing them on him. PO Vinzo drove § 87(2)(b)'s car back to the stationhouse but he did not search anywhere in the car or open or move anything. PO Vinzo could not recall if an officer used profanity during the incident.

§ 87(2)(g) PO Urman and PO Vinzo approached § 87(2)(b) before speaking to the other officers on the scene; PO Urman could not recall whether he ever spoke to the other officers on the scene (BR 09).

§ 87(2)(b) called 911 during the incident and narrated what the officers were doing but the officers' voices cannot be heard in the recording, nor does § 87(2)(b) report an officer entering his car for any reason (BR 10 and BR 11). The call ends before § 87(2)(b) is removed from his car and handcuffed.

§ 87(2)(g) it is recommended that **allegation A be closed as unsubstantiated.**

§ 87(2)(g) it is recommended that **allegations B through D be closed as unsubstantiated.**

Allegation E: Abuse of Authority: PO John Londono searched the vehicle in which § 87(2)(b) was an occupant.

Allegation F: Abuse of Authority: Officers searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that when he got his car back after he was released from the stationhouse, there were papers from the glove compartment on the floor of the passenger seat, a family photo was ripped, the back seat of the car was lifted up, and the center console was open. § 87(2)(b) testified that he had several items of value inside of his car when the vehicle was taken into police custody, some of which included a dashboard camera attached by a suction cup, some papers, a family photo, a cell phone, a Canon camera, roughly ten dollars in quarters and between twenty-five and fifty dollars in bills.

§ 87(2)(b) was not present for this allegation.

Sgt. Kovalenko testified that he resumed patrol after taking § 87(2)(b) to the stationhouse and had no further interaction with him. PO Londono told Sgt. Kovalenko later that § 87(2)(b) produced paperwork that showed the suspension was cleared so he was given summonses and released. § 87(2)(b)'s car was not vouchered because he was released without being processed but Sgt. Kovalenko did not know if his car was ever searched but he did not order officers to search it.

PO Londono testified that he and two officers he could not recall who were already at the stationhouse did an inventory search of § 87(2)(b)'s entire car because PO Londono thought that § 87(2)(b)'s arrest would be processed and they needed to see if there was any contraband in the car since that would be an additional charge. PO Londono did not have any specific reasons for thinking there might be contraband in the car and was just following protocol by conducting the inventory search. PO Londono normally searches cars before they are vouchered because the cars can be searched incident to a lawful arrest, and § 87(2)(b)'s car was not vouchered nor were any of the items inside of the car when the search was conducted or afterward, as § 87(2)(b) was released without being processed. PO Londono acknowledged that § 87(2)(b) had a dashboard camera inside his car, and various other personal items.

PO Vinzo and PO Urman testified that they could not recall whether § 87(2)(b)'s car was searched at the stationhouse.

An inventory search is legal when there is “reasonable and proper justification” for the impoundment of a vehicle, “and where the search is not made as a general exploratory search for the purpose of finding evidence of crime but is made for the justifiable purpose of finding, listing, and securing from loss, during the arrested person's detention, property belonging to him.” *People v. Sullivan*, 29 N.Y.2d 69, 75 (1971) (quoting *State v. Montague*, 73 Wn.2d 381, 385 (1968)). While probable cause is not required to conduct an inventory search, officers must conduct the search pursuant to a familiar routine procedure. The procedure must meet two standards of reasonableness. First, the procedure must be rationally designed to meet the objectives that justify the search in the first place. Second, the procedure must clearly limit the conduct of individual officers to ensure that the searches are carried out consistently and reasonably and do not become little more than an excuse for general rummaging to discover incriminating evidence. *People v. Galak*, 80 N.Y.2d 715, 719 (1993). An inventory search is undertaken in order to “protect property, ensure against unwarranted claims of theft, and protect uniformed members of the service and others against dangerous instrumentalities” and an officer is to “remove all valuables from the vehicle and invoice on a separate property clerk invoice.” *Patrol Guide* Procedure 218-13.

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **allegation E** be closed as substantiated.

§ 87(2)(g)

it is recommended that **allegation F** be closed as officers unidentified.

Allegation G: Abuse of Authority: An officer damaged § 87(2)(b)'s property.

Allegation H: Abuse of Authority: An officer deleted information on § 87(2)(b)'s electronic device

§ 87(2)(b) testified that a family photo in his car was ripped when he got his car back and all of the data from his dashboard camera had been deleted.

§ 87(2)(b) was not present for this allegation but she testified that the officer who drove § 87(2)(b)'s car to the stationhouse appeared to touch the § 87(2)(b)'s camera and break a piece off of it.

Sgt. Kovalenko testified that he could not remember if § 87(2)(b) mentioned having a camera in his car but he did not see a camera. He did not know of an officer looking through the camera or deleting anything from it.

PO Londono testified that he did not know of an officer looking through § 87(2)(b)'s camera or deleting anything from it. The officers did not damage anything in § 87(2)(b)'s car when they searched it, and PO Londono could not recall seeing a photo in the car.

PO Vinzo and PO Urman testified that they could not recall whether they saw a camera in the car, if an officer looked through or deleted anything from the camera, or if an officer damaged anything in the car.

The video § 87(2)(b) provided does not show an officer touching or breaking § 87(2)(b) s camera.

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It is therefore recommended that **allegations G and H be closed as officer unidentified.**

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date